

24STCV31060 24STCV31060

County: los-angeles

Division: Civil Law and Motion

Department: 733

Hearing date: 2026-09-16

Motion: PLAINTIFF'S MOTION TO COMPEL DEFENDANT'S COMPLIANCE WITH THE COURT'S JULY 27, 2026 ORDER
DEFENDANT CEDARS-SINAI MEDICAL CENTER'S MOTION FOR A PROTECTIVE ORDER DEFENDANT
CEDARS-SINAI MEDICAL CENTER'S MOTION TO COMPEL PLAINTIFF TO OBTAIN AND PRODUCE HER
EMPLOYMENT DEVELOPMENT DEPARTMENT RECORDS

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Case Number: 24STCV31060 Hearing Date: September 16, 2026 Dept: 733

SUPERIOR COURT OF THE STATE OF CALIFORNIA

FOR THE COUNTY OF LOS ANGELES

JENNIFER

L. FREEMAN, an individual,

Plaintiff,

vs.

CEDARS-SINAI MEDICAL CENTER, a California Corporation; and

DOES 1 through 100, Inclusive,

Defendants.

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CASE

NO.: 24STCV31060

[TENTATIVE] ORDER RE:

PLAINTIFF'S MOTION TO COMPEL

DEFENDANT'S COMPLIANCE WITH THE COURT'S JULY 27, 2026 ORDER

DEFENDANT CEDARS-SINAI

MEDICAL CENTER'S MOTION FOR A PROTECTIVE ORDER

DEFENDANT CEDARS-SINAI

MEDICAL CENTER'S MOTION TO COMPEL PLAINTIFF TO OBTAIN AND PRODUCE HER
EMPLOYMENT DEVELOPMENT DEPARTMENT RECORDS

Dept. 733

8:30 a.m.

September 16, 2026

I.

INTRODUCTION

This is a FEHA
action.

On November 25,
2024, Plaintiff Jennifer L. Freeman ("Plaintiff") filed a complaint

against Defendant Cedars-Sinai

Medical Center ("Defendant"), alleging causes of action for (1) Discrimination, including Discriminatory Termination, Based on Plaintiff's Actual or Perceived Disabilities, (2) Failure to Engage, (3) Failure to Accommodate, (4) Violation of the California Family Rights Act, (5) Discrimination, including Discriminatory Termination, Based on Plaintiff's Age (6) Retaliation, including Retaliatory Termination Based on Plaintiff's Actual or Perceived Participation in Protected Activities, (7) Failure to Prevent, and (8) Unfair Business Practices.

On

July 27, 2026, the Court granted Plaintiff's motion quash deposition subpoena for production of business records issued by Defendant to the EDD. The Court also granted Plaintiff's motion to compel the attendance and testimony of Defendant's personal most qualified.

On

August 10, 2026, Plaintiff filed the instant motion to compel Defendant to comply with the Court's July 27, 2026 Order. On September 2, 2026, Defendant filed an opposition. On September 9, 2026, Plaintiff filed a reply.

Also

on August 10, 2026, Defendant filed the instant motion for a protective order prohibiting or limiting the deposition of Bryan Hickey in his individual capacity. On September 2, 2026, Plaintiff filed an opposition. On September 9, 2026, Defendant filed a reply.

On

August 19, 2026, Defendant filed the instant motion to compel Plaintiff to obtain and produce her EDD records. On September 2, 2026, Plaintiff filed an opposition. On September 9, 2026, Defendant filed a reply.

II.

LEGAL STANDARD

1.

Compel

PMQ

Any party may obtain discovery, subject to restrictions, by taking the oral deposition of any person, including any party to the action. (Code Civ. Proc., § 2025.010.) A properly served deposition notice is effective to require a party or party-affiliated deponent to attend and to testify, as well as to produce documents for inspection and copying. (Code Civ. Proc., § 2025.280, subd. (a).)

California Code

of Civil Procedure section 2025.450, subdivision (a) provides: “If, after service of a deposition notice, a party to the action . . . , without having served a valid objection under Section 2025.410, fails to appear for examination, or to proceed with it, or to produce for inspection any document . . . described in the deposition notice, the party giving the notice may move for an order compelling the deponent’s attendance and testimony, and the production for inspection of any document . . . described in the deposition notice.”

California Code

of Civil Procedure section 2025.450, subdivision (b) provides: “A motion under subdivision (a) shall comply with both of the following:

The motion

shall set forth specific facts showing good cause justifying the production for inspection of any document, electronically stored information, or tangible thing described in the deposition notice.

The motion

shall be accompanied by a meet and confer declaration under Section 2016.040, or, when the deponent fails to attend the deposition and produce the documents, electronically stored information, or things described in the deposition notice, by a declaration stating that the petitioner has contacted the deponent to inquire about the nonappearance.”

2.

Protective Order

“The court, for

good cause shown, may make any order that justice requires to protect any party or other natural person or organization from unwarranted annoyance, embarrassment, or oppression, or undue burden and expense." (Code Civ. Proc., §§ 2030.090, subd. (b) [interrogatories], 2031.060, subd. (b) [production of documents], 2033.080, subd. (b) [requests for admission].) Such orders may include excusing the party from answering the discovery requests at issue, limiting the number of discovery requests, or extending the time to respond to discovery requests. (Code Civ. Proc., §§ 2030.090, subd. (b), 2031.060, subd. (b), 2033.080, subd. (b).) The court has considerable discretion in granting and crafting protective orders. (*Raymond Handling Concepts Corp. v. Superior Court* (1995) 39 Cal.App.4th 584, 588.)

The burden of proof is generally on the party seeking the protective order to show good cause for whatever order is sought. (Fairmont Ins. Co. v. Superior Court (2000) 22 Cal.4th 245, 255.) The concept of good cause requires a showing of specific facts demonstrating undue burden, etc., and justifying the relief sought. (See Goodman v. Citizens Life & Casualty Ins. Co. (1967) 253 Cal.App.2d 807, 819.) The facts are normally established in a declaration by counsel for the party seeking the protective order. The declaration must contain competent evidence—i.e., first-hand knowledge of the facts. Hearsay allegations on information and belief and conclusory statements that particular relief is necessary are not enough. (Ibid.)

3.

Compel EDD Records

Code of Civil Procedure section 2031.220

states: "A statement that the

party to whom a

demand for

inspection, copying, testing, or sampling has been directed will comply

with the particular demand shall state that the production, inspection, copying,

testing, or sampling, and related activity demanded, will

be allowed

either in whole or in part, and that all documents or things in the demanded category

that are in the possession, custody, or control of that party and to which no objection

is being made will be included in the production."

Code of Civil Procedure section 2031.320(a) states: "If a party filing a

response to a demand for inspection, copying, testing, or sampling under Sections 2031.210, 2031.220, 2031.230, 2031.240, and 2031.280 thereafter fails to permit the inspection, copying, testing, or sampling in accordance with that party's statement of compliance, the demanding party may move for an order compelling compliance."

The demanding party may move for an order compelling further responses to the demand if the demanding party deems that (1) a statement of compliance with the demand is incomplete, (2) a representation of inability to comply is inadequate, incomplete, or evasive, or (3) an objection in the response is without merit or too general. (Code Civ. Proc., § 2031.310(a).)

Motions to compel further responses to Requests for Production must set forth specific facts showing good cause justifying the discovery sought by the request. (Code Civ. Proc., § 2031.310(b).) To establish good cause, a discovery proponent must identify a disputed fact that is of consequence in the action and explain how the discovery sought will tend in reason to prove or disprove that fact or lead to other evidence that will tend to prove or disprove the fact. (*Digital Music News LLC v. Superior Court* (2014) 226 Cal.App.4th 216, 224, disapproved on other grounds by *Williams v. Superior Court* (2017) 3 Cal.5th 531; see also *Kirkland v. Superior Court* (2002) 95 Cal.App.4th 92, 98 [characterizing good cause as "a fact-specific showing of relevance"]; *Tbg Ins. Servs. Corp. v. Superior Court* (2002) 96 Cal.App.4th 443, 448 [the burden to show good cause for production "is met simply by a factspecific showing of relevance."].) If good cause is shown by the moving party, the burden shifts to the responding party to justify any objections made to disclosure of the documents. (*Kirkland*, supra, 95 Cal.App.4th at 98.)

Code

Complaint Response

A code-compliant response to a request for production consists of any of the following: (1) a statement that the party will comply, (2) a representation that the party lacks the ability to comply, or (3) an objection. (Code Civ. Proc., § 2031.210.) A statement that the party

will comply must state that the requests for production “will be allowed either in whole or in part, and that all documents or things in the demanded category that are in the possession, custody, or control of that party and to which no objection is being made will be included in the production.” (Id. § 2031.220.) “If only part of an item or category of item in a demand for inspection, copying, testing, or sampling is objectionable, the response shall contain a statement of compliance, or a representation of inability to comply with respect to the remainder of that item or category.” (Id. § 2031.240(a).) If an objection is made, the responding party must “[i]dentify with particularity any document, tangible thing, land, or electronically stored information falling within any category of item in the demand to which an objection is being made.” (Id. § 2031.240(b)(1).)

Failing to respond to an authorized method of discovery is a misuse of the discovery process. (Code Civ. Proc., § 2023.010(d).)

III.

DISCUSSION

A. Compel

Compliance & Protective Order

Plaintiff moves

for an order compelling Defendant to comply with this Court's July 27,

2026 Order by producing its

designated Person Most Qualified and/or Knowledgeable, Bryan Hickey, for Volume III of his deposition. Conversely, Defendant moves for a protective order Plaintiff from deposing Bryan Hickey in his individual capacity. Given the overlap in issues, the Court will address both motions in one ruling.

Plaintiff

seeks for the Court to compel Volume III of the deposition of Bryan Hickey on the grounds that on July 27, 2026, Court granted Plaintiff's motion to compel the attendance and testimony of Defendant's designated Person Most Qualified and/or Knowledgeable, which at the time the Court made its ruling, was Bryan Hickey. (See July 27, 2026 Order.) The Court in its ruling dismissed Defendant's contention that producing its PMQ, Mr. Hickey, for a third day of deposition would be unnecessary as Defendant could not unilaterally decide to

abstain from producing the witness after a proper notice. (Ibid.) The Court noted that the proper procedural avenue for Defendant would have been to move for a protective order. (Ibid.) The Court then granted “Plaintiffs motion to compel the attendance and testimony of Defendant’s person most qualified (“PMQ”)” and ordered the deposition to occur within thirty (30) days. (Ibid.)

Plaintiff

contends that Defendant still has not produced Mr. Hickey, but instead has designated Ms. Allison Rotter, a human resources employee, as the PMQ for Plaintiff’s remaining categories. (Kirk Decl., ¶ 10, Ex. 5.)

Defendant

thus is also moving for a protective order prohibiting or limiting the deposition of Mr. Hickey in both his capacity as Cedars-Sinai’s person most qualified (“PMQ”) and in his individual capacity. As for Mr. Hickey’s deposition in its individual capacity, Defendant asserts that the close of Volume I, Plaintiff’s counsel stipulated on the record that Hickey’s personal capacity examination was being folded into the PMQ examination, stating: “We’re taking both his PMK and personal capacity at the same time. So you don’t have to produce him again as an individual once we’re done.” (Andrews Decl., ¶ 5, Ex. 2 [Hickey Depo. Vol. I at 335.1-5.]) As for Mr. Hickey in his capacity as Defendant’s PMQ, the Court granted Plaintiff’s motion to compel the deposition of Defendant’s PMQ, which was Mr. Hickey at the time, in its July 27, 2026 Order. T

As an initial

matter, the Court notes that its July 27, 2026 expressly does not concern compelling the deposition of Mr. Hickey in its individual capacity. (Luri v. Greenwald (2003) 107 Cal.App.4th 1119, 1125 [“As a general rule, the trial court may consider only the grounds stated in the notice of motion.”].) Thus, the Court rejects any request by Plaintiff to seek the deposition of Mr. Hickey in an individual capacity. (Opp. at p. 15.)

The

Court therefore agrees with Defendant that the Court’s July 27, 2026 Order provides the relief of compelling the deposition of Defendant’s PMQ, who at the time was Mr. Hickey, rather than providing the relief of compelling the deposition of specifically Mr. Hickey, who is now no longer Defendant’s PMQ.

Code of

Civil Procedure section 2025.230 provides that “[i]f the deponent named is not a natural person, the deposition notice shall describe with reasonable particularity the matters on which examination is requested. In that event, the deponent shall designate and produce at the deposition those of its officers, directors, managing agents, employees, or agents who are most qualified to testify on its behalf as to those matters to the extent of any information known or reasonably available to the deponent.” Consistent with section 2025.230’s designation discretion, Defendant informed Plaintiff that it designates Allison Rotter, Director of Human Resources, as its PMQ for the remaining categories to which Mr. Hickey did not testify. (Andrews Decl., ¶ 11.) Defendant asserts that Ms. Rotter’s testimony as PMQ will provide Defendant’s position on the remaining categories. Any information Mr. Hickey personally possesses that is relevant to those categories is “known or reasonably available” to Defendant and can be conveyed through a properly prepared PMQ. (Maldonado v. Superior Court (2002) 94 Cal.App.4th 1390, 1396-1397; [If the subject matter of the questioning is clearly stated, the burden is on the entity, not the examiner, to produce the right witnesses. And, if the particular officer or employee designated lacks personal knowledge of all the information sought, he or she is supposed to find out from those who do”] (emphasis added).)

It is

within Defendant’s discretion to designate its own PMQ as to Plaintiff’s remaining noticed categories. The July 27, 2026 Order solely compelled Defendant’s PMQ and explicitly stated that the burden is on Defendant “to produce the correct witness for the noticed categories, such that definitive, unequivocal answers could be obtained.” (July 27, 2026 Order at p. 14.) Defendant did that, designated Ms. Rotter as the correct witness, and attempted to schedule her deposition within the Court’s delineated time-frame, specifically on August 21, 24, 25, and 27, 2026. (Andrews Decl., ¶ 11, Ex. 7.) Plaintiff refused. (Ibid.) So long as Defendant designates a witness most qualified to testify on the noticed topics, which is no longer Mr. Hickey, Plaintiff does not have the right to refuse that designation simply because she prefers Mr. Hickey. (See Maldonado, supra, 94 Cal.App.4th at p. 1398 [holding party was not required to produce a former employee even if “the former employees are far more knowledgeable about the litigation than anyone currently employed by the company. [Holding party’s] duty is limited, as we have said, to producing the most knowledgeable person currently in its employ and making sure that that

person has access to information and documents reasonably available within the corporation.”].)

Defendant’s

motion is granted. Plaintiff’s motion is denied. As such, Plaintiff’s accompanying request for monetary sanctions is also denied.

B.

Compel EDD Records

Defendant moves for an order requiring Plaintiff to execute and submit Form DE 5600

(Authorization for Release of Records) to the California Employment Development Department (“EDD”); an order requiring Plaintiff to produce all responsive EDD records to Defendant within two (2) business days of Plaintiff’s receipt of those records to complete compliance with her prior agreement to produce all documents responsive to Request for Production No. 40; and an order requiring Plaintiff to serve a supplemental response to Request for Production No. 74, pursuant to Code of Civil Procedure section 2031.310.

Plaintiff

moved to quash the subpoena issued by Defendant upon the EDD on June May 21, 2026, seeking information regarding Plaintiff’s disability benefits. The Court heard and granted the motion on July 27, 2026. The Court found that given that the subpoena was issued upon the EDD and the EDD concurrently was asserting the official information privilege, which the Court found applicable, EDD cannot be compelled to produce the requested the documents. (July 27, 2026 Order at p. 7.)

While

the Court found that Defendant was seeking independent relief, which was not properly noticed, Defendant alternatively requested the Court to compel Plaintiff to execute the Authorization for Release of Records (Form DE 5600) necessary to obtain the responsive records from the EDD and to produce all responsive records she receives.

The

Court urged the parties to meet and confer regarding a number of questions to

avoid unnecessary motion practice. (See *Chavez v. Sw. Key Program, Inc.* (S.D. Cal. Aug. 2, 2012) No. 11CV1878- CAB (NLS), 2012 WL 12868258, at *2 (applying California law) ["Applied to the facts of this case, the gravamen of the disability discrimination suit is inconsistent with the continued assertion of the protections of the California Unemployment Insurance code for documents relating to disability applications and benefits. Thus, Plaintiff has waived the protection of EDD documents by maintenance of an action inconsistent with the assertion of the privilege."]; *ibid.* ["Plaintiff must show she can, with or without reasonable accommodation, perform all the essential functions of the job. As Defendant argues, Plaintiff cannot put her ability to perform the essential job functions at issue and, at the same time, assert a privilege governing statements she herself made as to her ability to perform those job functions."]; *Gomez Cabrales v. Aerotek, Inc.* (C.D. Cal. May 8, 2018) 2018 WL 2121829, at *4 (applying California law) [finding "to the extent [] EDD documents are protected under California law, such protection has been waived because 'the gravamen of the disability discrimination suit is inconsistent with the continued assertion of the protections of the California Unemployment 99 Insurance [C]ode for documents relating to disability applications and benefits.' "]; *Romano v. AT&T Mobility Servs., LLC* (S.D. Cal. Nov. 17, 2020) No. 320CV00698JLSKSC, 2020 WL 6741677, at *3 (applying California law) ["The gravamen of plaintiff's age discrimination suit is inconsistent with the continued assertion of the protections of the California Unemployment Insurance Code for documents pertaining to unemployment benefits, particularly because plaintiff alleges that he was terminated because of his age. [] The Court finds Plaintiff has waived the protection of the EDD and UIAB documents 'by maintenance of an action inconsistent with the assertion of the privilege.'"] *Colosimo v. Alere San Diego, Inc.* (S.D. Cal. June 15, 2026) No. 26-CV-809-LLJAC, 2026 WL 1725376, at *5 (applying California law) [granting a motion to compel Plaintiff to execute "an authorization to the California EDD to release records" as Plaintiff waived the privilege by filing an employment discrimination action]; *Wesley v. Gates* (N.D. Cal. July 2, 2009) No. C 08-2719 SI, 2009 WL 1955997, at *1 [granting a motion to require Plaintiff's authorization of release of his EDD records because Plaintiff's records at the EDD "are relevant to plaintiffs disability discrimination claims"].)

Defendant

provides that following the Court's directive, it requested that Plaintiff execute and submit Form DE 5600 (Song Decl., Ex. 10), obtain and produce her EDD records, and resolve the dispute without motion practice. (*Id.*, ¶ 4,

Ex. 2.) Defendant further identified Requests for Production (“RFPDs”) Nos. 40 and 74 as the requests to which the records respond. (Ibid.)

RFPD No. 40 seeks

“[a]ll COMMUNICATIONS between [Plaintiff] and any governmental agency that evidence, reflect, support, refute, or refer to any of the conduct underlying the claims asserted in [Plaintiff’s] COMPLAINT.” RFP No. 74 sought “[a]ll DOCUMENTS reflecting any statement by [Plaintiff] or any representative of [Plaintiff] regarding [Plaintiff’s] employment status, inability to work, disability, medical condition, or work restrictions submitted to the EDD from June 1, 2019 to October 1, 2022.” While Plaintiff agreed “to produce responsive documents in her possession, custody, or control” in response to RFPDs No. 40, Plaintiff produced EDD records for only four months—June 2019, August 2019, January 2020, and May 2020—despite receiving SDI benefits for approximately 39 months. (Id., ¶¶ 10, 12, Ex. 7 [Pl.’s Resp. to RFPDs No. 40], Ex. 9 [documents Bates-stamped J.Freeman 000722–29, 742–43, and 747–54].)

Plaintiff produced

no documents in response to RFPDs No. 74. Instead, she asserted she was “unable to comply in full” because the responsive records were “in the exclusive possession” of the EDD. (Id., ¶ 11, Ex. 8 [Pl.’s Resp. to RFPDs No. 74].)

The EDD records

are squarely relevant to this action, as provided for in the authority this Court cites above. Plaintiff explicitly alleges that she was able to perform the essential functions of her position with the accommodation of remote work, as is needed to support her disability claims pursuant to FEHA. The EDD records may show whether Plaintiff was unavailable, her job-search efforts, work sought or obtained, and representations about availability, which is relevant to Plaintiff’s mitigation efforts. Furthermore, “an employer is not liable for backpay during periods that an improperly discharged employee is unavailable for work due to a disability.” (Davis v. Los Angeles Unified School Dist. Personnel Com. (2007) 152 Cal.App.4th 1122, 1133–1134.)

Plaintiff waived

any personal confidentiality protection through conduct “so inconsistent with an intent to enforce the right as to induce a reasonable belief that such right has been relinquished.” (Crest Catering Co. v. Superior Court (1965) 62 Cal.2d 274, 278.) She alleges she was “fully capable of performing the

essential functions of her job remotely,” seeks \$317,750 in lost wages on that theory, and received SDI benefits for approximately 39 months based on repeated certifications that she could not perform her “regular or customary work.” Having placed her work capacity and wage loss at issue, she cannot invoke confidentiality to shield documents pertaining those same subjects. (Chavez v. Sw. Key Program, Inc. (S.D. Cal. Aug. 2, 2012) No. 11CV1878- CAB (NLS), 2012 WL 12868258, at *2 [“One example of an inconsistent act is the bringing of a lawsuit, the gravamen of which is ‘so inconsistent with the continued assertion of the ... privilege as to compel the conclusion that the privilege has in fact been waived.’ ”].)

There is persuasive authority to support the relief sought – specifically for an order requiring Plaintiff to execute and submit Form DE 5600 (Authorization for Release of Records) to the EDD. In Colosimo v. Alere San Diego, Inc. (S.D. Cal. 2026) 2026 WL 1725376, at *5, applying California law, the Court applied Crest Catering and compelled the plaintiff, who was pursuing an employment discrimination action, to execute an authorization releasing EDD records; and it held that privacy concerns could be addressed through protective measures. (See also Wesley v. Gates (N.D. Cal. July 2, 2009) No. C 08-2719 SI, 2009 WL 1955997, at *1 [“Furthermore, the Court may order plaintiff to sign the required authorization releasing the SSA and EDD records”]; see also Miranda v. 21st Century Ins. Co. (2004) 117 Cal.App.4th 913, 929 [affirming the trial court’s order granting a motion requesting the terminating sanction of dismissal after the trial court ordered the plaintiff to sign authorizations for release of her medical records from Kaiser and plaintiff refused to sign the authorizations].)

Should Plaintiff have any such privacy concerns, the Court finds that Defendant’s counsel’s representation to provide Plaintiff’s counsel’s first review, redactions limited to unrelated personal or private information, and a privilege log identifying each redaction is sufficient to assuage Plaintiff’s legitimate concerns. (See Motion at p. 6.)

Defendant’s motion is granted in part. At least some of the documents are with Plaintiff’s custody or control, given that they must be provided upon her request. The exact scope of what she can cause to be produced remains to be seen. To that end, the Court orders Plaintiff to execute and submit Form DE 5600 (Authorization for Release of Records) to the California Employment Development Department (“EDD”) within ten (10) days of this order. Should any documents be provided by the EDD, the Court orders Plaintiff

to produce them to Defendant, pursuant to the stated protective measures. As to addition documents responsive to the RFPDs at issue, Plaintiff need merely provide Code-compliant responses as well as the relevant documents. If that response turns out to be incomplete, or if there are documents that should have been preserved but were not, the Court can fashion appropriate remedies, including but not limited to, excluding the evidence at trial or asking the jury to draw an adverse inference.

IV.

CONCLUSION

Based on the foregoing, Defendant's motion for a protective order is GRANTED.

Plaintiff's motion to compel compliance is DENIED. Plaintiff's request for sanctions is DENIED.

Defendant's motion to compel EDD records is GRANTED in part. Defendant is ordered to prepare a Proposed Order consistent with this opinion within five (5) days. (Cal. Rules of Court, rule 5.125(b).) Any potential objection to the Proposed Order must be made pursuant to Rules of Court, rule 5.125(c).

Dated this 16th
day of September 2026

Hon. Gary
D. Roberts

Judge
of the Superior Court